

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: August 20, 2025

TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 9	24CV450420	SAFECO INSURANCE COMPANY OF AMERICA vs ISRAEL DELGADO	Motion: Set Aside and Vacate Dismissal Order Plaintiff moves to set aside the Court’s December 10, 2024 granting Plaintiff’s Dismissal Without Prejudice. Plaintiff explains that Plaintiff’s counsel’s office prematurely filed a Dismissal Without Prejudice in order to “do further research on the Defendant(s) involved in this matter, not realizing that the statute of limitations had run in this case.” Plaintiff’s counsel “attempted to pull the dismissal from being filed but this Court had already filed it on December 10, 2024.” Defendant has not opposed the motion. (See <i>Laguna Auto Body v. Farmers Is. Exchange</i> (1991) 231 Cal.App.3d 481, 489 [“[A]ppellants had ample opportunity to present their arguments and excuses to the trial court. Instead, they failed to file opposition ... leading the trial court and us to presume they had no meritorious arguments.”].) The Court finds Plaintiff has met the requirements for relief under Code Civ. Proc., § 473(b). The motion is GRANTED. The dismissal entered on December 10, 2024 is vacated and set aside. Plaintiff shall prepare the final order within 10 days of the date of the hearing. The matter shall be set for a further Case Management Conference on December 17, 2025 at 10:00 a.m. in Department 13. Plaintiff to give notice.

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LINE #	CASE #	CASE TITLE	RULING
9:01 a.m.			
LINE 1	19CV360975	<i>Sophie Shen v. Wei Xia et al</i>	Order of Examination OFF CALENDAR due to lack of service.

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